

U.O. Note No.98/Spl.C/A1/2009-1, G.A. (Spl.C) Dept., dt.22.07.2009 regarding instructions on consultation with A.P.V.C. in respect of Appeal, Revision & Review Petitions.

Subject Heading: Scheme of Vigilance Commission – Consultation of A.P. Vigilance Commission in respect of Appeal, Revision & Review petitions of Government Servants, issued on the final orders in Disciplinary / Criminal Cases – Certain instructions – Regarding.

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Ref :U.O.Note No.3362/SC.E.95-1, G.A. (SC.E) Dept., dt.29.01.1996.

All the Departments of Secretariat are informed that instructions were issued in the reference cited to the effect that 'Mercy Petitions' shall first be examined under Rule XV (14) (c) of the Petitions Rules in Appendix-I to Business Rules and Secretariat Instructions and thereafter to seek the advice of the Vigilance Commissioner if considered necessary. In no case, the penalty that became final shall not be set aside without consulting the Vigilance Commissioner.

2. It is brought to the notice of the Government that as the instructions issued in the reference cited are not covering Appeals / Revision / Review petitions etc., in several cases while considering the Appeal Petitions, Revision & Review of disciplinary cases / criminal cases, the Departments are not consulting the V.C, which defeats the very purpose of the Scheme of Vigilance Commission.

3. The Government, therefore, direct that all the Departments of Secretariat shall consult the Vigilance Commission while considering the Appeals, Revision & Review of final order issued in disciplinary cases / criminal cases, which have been initiated on the basis of enquiry reports of A.C.B.

4. The Departments of Secretariat are requested to follow the above instructions scrupulously.